

1.

CASE #	CASE NAME	HEARING NAME
CVRI2402073	BOLORIZADEH VS NATIONAL DEFAULT SERVICING CORPORATION	MOTION TO COMPEL

Tentative Ruling:

Second Amended Complaint (SAC) & Allegations.

This case involves a dispute over property located in Canyon Lake (the “Property”). Plaintiff Mohammad Agha Bolorizadeh purchased the Property following a trustee’s sale pursuant to Defendant Canyon Lake Property Owners Association’s (or the “Association”) delinquent assessment lien on the Property, a Notice of Default and Election to Sell were recorded pursuant to default by Defendants Elvia Zamy and James Zamy (the “Zamarys”). Association commenced the foreclosure process through its foreclosure trustee, Defendant Schwartz Vays Ca, LLC (“Schwartz”). The sale from Plaintiff’s purchase resulted in surplus proceeds (the “Surplus Funds”). Schwartz issued a Trustee’s Dead Upon Sale to Plaintiff. After Plaintiff completed improvements to the Property in excess of \$255,000, Defendant National Default Servicing Corporation (“NDSC”) recorded a new Notice of Trustee’s Sale on March 14, 2024. Plaintiff disputes the manner of distribution of the Surplus Funds from the sale, a controversy over lien priorities, and the means by which Plaintiff may spare the Property from the trustee sale.

The operative SAC, filed October 14, 2025, asserts causes of action for (1) Negligence, (2) Declaratory Relief, and (3) Financial Elder Abuse.

Discovery.

Plaintiff served Association and Defendant Schwartz Vays CA, LLC (“Defendants”) with Special Interrogatories (“SROGs”), Requests for Admission (“RFAs”), and Requests for Production of Documents (“RFPs”) on April 24, 2026. (Plaintiff Decl., ¶2.) Based on an extension agreement, on May 27, 2026, Defendants served responses consisting solely of boilerplate objections. (*Id.* at ¶4.) On June 26, 2026, Defendant served unverified supplemental responses to all written discovery, but no privilege log was provided despite redactions that were never disclosed or logged. (*Id.* at ¶¶8, 11.)

Motions.

Plaintiff now moves to compel further verified responses to Plaintiff’s SROGs, RFAs, and RFPs. Plaintiff contends unverified supplemental responses are tantamount to no response at all. He argues the boilerplate objections, restated verbatim in every response, are without merit. Plaintiff requests monetary sanctions in the amount of \$60 for the filing fee to bring this motion.

In opposition, Defendants assert that contrary to Plaintiff's assertions, Defendants served verified responses on June 26, 2026 that included a document production of over 350 pages. (Penn Decl., ¶¶7, Exhs. H, I, J.) On July 27, 2026, Defendants served a privilege log. (*Id.* at ¶¶9.) Defendants argue Plaintiff seeks irrelevant information and documents, particularly against Association, because Plaintiff has never been a potential recipient of surplus proceeds from the trustee's sale under Civil Code section 2924k.

In reply, Plaintiff again claims the responses were unverified on June 26, 2026 and verifications were executed and served only on July 29, 2026. Plaintiff argues the provided privilege log remains deficient. Plaintiff does not make any further arguments regarding the RFAs or SROGs. However, as to the RFPs, Plaintiff asserts, "The opposition restates, and thereby proves, the non-compliant form of the production responses." (Reply, heading V.)

Jury trial is currently set on October 2, 2026.

ANALYSIS

I. Meet and Confer

Before filing a motion to compel a further response, the moving party must engage in a reasonable and good faith attempt to resolve informally each issue set forth in the motion and must file an appropriate declaration with the motion. (Code Civ. Proc. §§ 2030.300, subd. (b), 2031.310, subd. (b)(2), and 2016.040.) A meet and confer declaration "shall state facts showing a reasonable and good faith attempt, **either in person, by telephone, or by videoconference**, to informally resolve each issue presented by the motion." (Code Civ. Proc., § 2016.040, subd. (a), emphasis added.)

Here, Plaintiff sent Defendants a letter on June 29, 2026 requesting Code-compliant responses by June 30, 2026, the next day, at 5pm. (Plaintiff Decl., ¶9, Exh. C.) Defendants replied in writing that a one day turnaround for supplemental responses was not reasonable and supplemental responses would not be provided by June 30, 2026. (*Id.* at ¶10.) In writing, Plaintiff extended the deadline to July 1, 2026, but Defendants never responded. (*Id.* at ¶¶10-11, Exh. E.)

Defendants present evidence that it provided verified supplemental responses on June 26, 2026, prior to the filing of Plaintiff's motion, and provided a privilege log on July 27, 2026. (Penn Decl. ¶¶6, 9, Exhs. H, I, J.) Yet, in reply, despite evidence of verification on June 26, 2026, Plaintiff still argues Defendants' June 26, 2026 supplemental responses were unverified. Moreover, in opposition, Defendants assert they have provided full and complete responses to the SROGs, RFAs, and RFPs. In reply, Plaintiff is silent as the SROGs and RFAs. The failure to respond to a point is "equivalent to a concession." (*Sehulster tunnels/Pre-con v. Traylor Brothers, Inc.* (2003) 111 Cal.App.4th 1328, 1345, fn. 16.) As to the RFPs, though, Plaintiff claims, "The opposition restates, and thereby proves, the non-compliant form of the production responses." (Reply, Subheading V.) It is wholly unclear what Plaintiff is seeking at this

point. The parties need to meet and confer based on the assumption that verifications were provided on June 26, 2026.

Plaintiff argues in reply that the served privilege log fails on its face because it has one entry covering a six-day email range, described only as “Attorney-Client Privileged Communication.” Plaintiff contends a code-compliant log or production should be ordered. However, this is immaterial for purposes of this motion. Plaintiff’s supplemental declaration does not outline meet and confer efforts regarding the deficient privilege log. As such, Plaintiff must bring another motion to compel further supplemental responses if the parties cannot resolve the matter. (Code Civ. Proc., § 2031.310 [“Where responses have been made but they are not satisfactory to the demanding party, the motion is to compel further responses”].)

Plaintiff’s efforts for meet and confer were NOT reasonable and did not comply with Code of Civil Procedure section 2016.040 as communication was via letter only. Although acting in pro per, a pro per litigant is held to the same standards as attorneys. (*Kobayashi v. Superior Court* (2009) 175 Cal.App.4th 536.) Plaintiff still must comply with the rules of court to the same extent as an attorney. (*County of Orange v. Smith* (2005) 132 Cal.App.4th 1434, 1444.)

The Court **ORDERS** a Code-compliant meet and confer that assumes verifications were provided on June 26, 2026. The parties shall further meet and confer regarding the privilege log.

The Court **ORDERS** the parties file a separate joint statement no later than 10 days prior to the continued hearing date. The joint statement shall outline the additional meet and confer efforts, identify any remaining discovery request at issue, and state the parties’ respective positions. If the proposed joint separate statement will be more than 100 pages long, the Court orders the parties to provide an outline of the disputes. (Cal. Rules of court, rule 3.1345(b)(2).) The hearing is continued to 9/9/2026 at 8:30 am in Dept. 3.